

SUPREME COURT OF INDIA

Arnesh Kumar v. State of Bihar & Anr.

(2014) 8 SCC 273

Decided 2 July 2014 · 2-judge bench

21 pages of the original

Full text of the judgment as issued by the Supreme Court of India, reproduced page by page.

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REPORTABLE IN THE SUPREME COURT OF INDIA CRIMINAL APPELLATE JURISDICTION CRIMINAL APPEAL NO. 1277 OF 2014 (@SPECIAL LEAVE PETITION (CRL.) No.9127 of 2013)

ARNESH KUMAR

..... APPELLANT VERSUS

STATE OF BIHAR & ANR.

.... RESPONDENTS

J U D G M E N T

Chandramauli Kr. Prasad The petitioner apprehends his arrest in a case under Section 498-A of the Indian Penal Code, 1860 (hereinafter called as IPC) and Section 4 of the Dowry Prohibition Act, 1961.

The maximum sentence

provided under Section 498-A IPC is imprisonment for a term which may extend to three years and fine whereas the maximum sentence provided under

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Section 4 of the Dowry Prohibition Act is two years and with fine.

Petitioner

happens

to

respondent no.2 Sweta Kiran. them was solemnized on 1st

be

the

husband

of

The marriage between

July, 2007. His attempt

to secure anticipatory bail has failed and hence he has knocked the door of this Court by way of this Special Leave Petition.

Leave granted.

In sum and substance, allegation levelled by the wife against the appellant is that demand of Rupees eight lacs, a maruti car, an

air-

conditioner, television set etc. was made by her mother-in-law and father-in-law and when this fact was

brought

supported

his

another woman.

to

the

mother

appellant's and

notice,

threatened

to

he

marry

It has been alleged that she was

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driven out of the matrimonial home due to nonfulfilment of the demand of dowry.

Denying preferred

these

an

allegations,

application

for

the

appellant

anticipatory

bail

which was earlier rejected by the learned Sessions Judge and thereafter by the High Court.

There is phenomenal increase in matrimonial disputes

in

recent

years.

marriage

is

greatly

revered

Section

498-A

of

IPC

the

The in

was

institution this

of

country.

introduced

with

avowed object to combat the menace of harassment to a woman at the hands of her husband and his relatives.

The

fact

that

Section

498-A

is

a

cognizable and non-bailable offence has lent it a dubious place of pride amongst the provisions that are

used

as

weapons

disgruntled wives. to

get

the

rather
than
shield
by

The simplest way to harass is
husband
under this provision.
and

his
relatives
arrested

In a quite number of cases,

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bed-ridden grand-fathers and grand-mothers of the husbands, their sisters living abroad for decades are arrested.

“Crime in India 2012

published

National

by

Crime

Statistics”

Records

Bureau,

Ministry of Home Affairs shows arrest of 1,97,762 persons all over India during the year 2012 for offence under Section 498-A of the IPC, 9.4% more than the year 2011.

Nearly a quarter of those

arrested under this provision in 2012 were women i.e. 47,951 which depicts that mothers and sisters of the husbands were liberally included in their arrest net.

Its share is 6% out of the total

persons arrested under the crimes committed under Indian Penal Code.

It accounts for 4.5% of total

crimes committed under different sections of penal code, more than any other crimes excepting theft and hurt.

The rate of charge-sheeting in cases

under Section 498A, IPC is as high as 93.6%, while the conviction rate is only 15%, which is lowest across all heads.

As many as 3,72,706 cases are

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pending trial of which on current estimate, nearly 3,17,000 are likely to result in acquittal.

Arrest

brings

humiliation,

and cast scars forever. also the police.

curtails

freedom

Law makers know it so

There is a battle between the

law makers and the police and it seems that police has not learnt its lesson; the lesson implicit and embodied in the Cr.PC. colonial

image

It has not come out of its

despite

six

decades

of

independence, it is largely considered as a tool of

harassment,

considered

a

oppression

friend

of

and

public.

surely The

need

not for

caution in exercising the drastic power of arrest has been emphasized time and again by Courts but has not yielded desired result. Power to arrest greatly contributes to its arrogance so also the failure of the Magistracy to check it.

Not only

this, the power of arrest is one of the lucrative sources of police corruption.

The attitude to

arrest first and then proceed with the rest is

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despicable.

It has become a handy tool to the

police officers who lack sensitivity or act with oblique motive.

Law Commissions, Police Commissions and this Court in a large number of judgments emphasized the need to maintain a balance between individual liberty and societal order while exercising the power of arrest.

Police officers make arrest as

they believe that they possess the power to do so.

As the arrest curtails freedom, brings humiliation and casts scars forever, we feel differently. believe

that

no

arrest

should

be

made

We only

because the offence is non-bailable and cognizable and therefore, do so.

lawful for the police officers to

The existence of the power to arrest is

one thing, the justification for the exercise of it is quite another. Apart from power to arrest, the police officers must be able to justify the reasons

thereof.

No

arrest

can

be

made

in

a

routine manner on a mere allegation of commission of an offence made against a person.

It would be

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prudent and wise for a police officer that no arrest is made without a reasonable satisfaction reached

after

some

investigation

as

to

the

genuineness of the allegation. Despite this legal position,

the

improvement. decreased.

Legislature

did

not

find

any

have

not

Numbers

of

arrest

Ultimately,

the

Parliament

had

to

intervene and on the recommendation of the 177th Report of the Law Commission submitted in the year 2001, Section 41 of the Code of Criminal Procedure (for short 'Cr.PC), in the present form came to be enacted.

It is interesting to note that such a

recommendation was made by the Law Commission in its 152nd and 154th Report submitted as back in the year

1994.

The

value

of

the

proportionality

permeates the amendment relating to arrest.

As

the offence with which we are concerned in the present appeal, provides for a maximum punishment of imprisonment which may extend to seven years and

fine,

Section

41(1)(b),

Cr.PC

which

is

relevant for the purpose reads as follows:

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"41.

When police may arrest without warrant.-(1) Any police officer may without an order from a Magistrate and without a warrant, arrest any person - (a)x

x

x

x

X

X

(b) against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years whether with or without fine, if the following conditions are satisfied, namely : (i) x x x x x (ii) the police officer is satisfied that such arrest is necessary – (a) to prevent such person from committing any further offence; or (b) for proper offence; or

investigation

of

the

(c) to prevent such person from causing the evidence of the offence to disappear or tampering with such evidence in any manner; or (d) to prevent such person from making any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to the police officer; or (e) as unless such person is arrested, his presence in the Court whenever required cannot be ensured,

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and the police officer shall record while making such arrest, his reasons in writing:

Provided that a police officer shall, in all cases where the arrest of a person is not required under the provisions of this sub-section, record the reasons in writing for not making the arrest.

X

X

X

X

X

X

From a plain reading of the aforesaid provision, it is evident that a person accused of offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years with or without fine, cannot be arrested

by

the

police

officer

only
on
its
satisfaction that such person had committed the offence punishable as aforesaid.
Police officer
before arrest, in such cases has to be further satisfied
that
such
arrest
is
necessary
to
prevent such person from committing any further offence;
or
for
proper
investigation
of
the
case; or to prevent the accused from causing the

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evidence
of
the
offence
to
disappear;
or
tampering with such evidence in any manner; or to
prevent
such
person

from

making

any

inducement, threat or promise to a witness so as to dissuade him from disclosing such facts to the Court or the police officer; or unless such accused person is arrested, his presence in the court

whenever

required

cannot

be

ensured.

These are the conclusions, which one may reach based on facts.

Law mandates the police officer

to state the facts and record the reasons in writing which led him to come to a conclusion covered

by

any

of

the

while making such arrest.

provisions

aforesaid,

Law further requires

the police officers to record the reasons in writing for not making the arrest.

In pith and

core, the police office before arrest must put a question to himself, why arrest? required?

Is it really

What purpose it will serve?

object it will achieve?

What

It is only after these

questions are addressed and one or the other

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conditions as enumerated above is satisfied, the power of arrest needs to be exercised.

In fine,

before arrest first the police officers should have

reason

to

believe

on

the

basis

of

information and material that the accused has committed the offence.

Apart from this, the

police officer has to be satisfied further that the arrest is necessary for one or the more purposes envisaged by sub-clauses (a) to (e) of clause (1) of Section 41 of Cr.PC.

An

accused

arrested

without

warrant

by

the police has the constitutional right under Article 22(2) of the Constitution of India and Section

57,

Cr.PC

to

be

produced

before

the

Magistrate without unnecessary delay and in no circumstances beyond 24 hours excluding the time necessary for the journey.

During the course of

investigation of a case, an accused can be kept in detention beyond a period of 24 hours only when

it
is
authorised
by
the
Magistrate
in
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exercise of power under Section 167 Cr.PC.

The
power to authorise detention is a very solemn function.
It affects the liberty and freedom of
citizens and needs to be exercised with great care and caution. Our experience tells us
that it

is
not
exercised
with
the
seriousness
it
deserves. In many of the cases, detention is authorised
in
a
routine,
manner.

Before
a
casual
and
Magistrate
cavalier

authorises

detention under Section 167, Cr.PC, he has to be first satisfied that the arrest made is legal and

in

accordance

with

law

and

all

the

constitutional rights of the person arrested is satisfied. officer

If the arrest effected by the police

does

not

satisfy

the

requirements

of

Section 41 of the Code, Magistrate is duty bound not

to

authorise

his

release the accused.

further

detention

and

In other words, when an

accused is produced before the Magistrate,

the

police officer effecting the arrest is required to furnish to the Magistrate, the facts, reasons

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and

its
Magistrate
conclusions
for
in
to
turn
is
arrest be
and
the
satisfied
that
condition precedent for arrest under Section 41 Cr.PC
has
been
satisfied
and
it
is
only
thereafter that he will authorise the detention of
an
accused.
authorising
The
detention
Magistrate
will
record
satisfaction, may be in brief but
before its
own
the said

satisfaction must reflect from its order.

It

shall never be based upon the ipse dixit of the police officer, for example, in case the police officer

considers

the

arrest

necessary

to

prevent such person from committing any further offence or for proper investigation of the case or for preventing an accused from tampering with evidence or making inducement etc., the police officer

shall

furnish

to

the

Magistrate

the

facts, the reasons and materials on the basis of which

the

police

conclusion.

Those

officer shall

had be

reached

perused

by

its the

Magistrate while authorising the detention and

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only after recording its satisfaction in writing that the Magistrate will authorise the detention of the accused.

In fine, when a suspect is arrested and produced before a Magistrate for authorising detention, the Magistrate has to address the question whether specific reasons have been recorded for arrest and if so, prima facie those reasons are relevant and secondly a reasonable conclusion could at all be reached by the police officer that one or the conditions stated above are attracted. other To this limited extent the Magistrate will make judicial scrutiny. Another provision i.e. Section 41A Cr.PC aimed to avoid unnecessary arrest or threat of arrest looming large on accused requires to be vitalised. Section 41A as inserted by Section 6 of the Code of Criminal Procedure (Amendment) Act, 2008(Act 5 of 2009), which is relevant in the context reads as follows:

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“41A. Notice of appearance before police officer.-(1)

The police officer shall, in all cases where the arrest of a person is not required under the provisions of sub-section (1) of Section 41, issue a notice directing the person against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence, to appear before him or at such other place as may be specified in the notice.

(2) Where such a notice is issued to any person, it shall be the duty of that person to comply with the terms of the notice.

(3) Where such person complies and continues to comply with the notice, he shall not be arrested in respect of the offence referred to in the notice unless, for reasons to be

recorded, the police officer is of the opinion that he ought to be arrested.

(4) Where such person, at any time, fails to comply with the terms of the notice or is unwilling to identify himself, the police officer may, subject to such orders as may have been passed by a competent Court in this behalf, arrest him for the offence mentioned in the notice.”

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Aforesaid provision makes it clear that in all cases where the arrest of a person is not required under Section 41(1), Cr.PC, the police officer is required to issue notice directing the accused to appear before him at a specified place and time.

Law obliges such an accused to

appear before the police officer and it further mandates that if such an accused complies with the terms of notice he shall not be arrested, unless for reasons to be recorded, the police office is of the opinion that the arrest is necessary.

At this stage also, the condition

precedent for arrest as envisaged under Section 41 Cr.PC has to be complied and shall be subject to

the

same

scrutiny

by

the

of

opinion

Magistrate

as

that

the

aforesaid.

We

are

the

if

provisions of Section 41, Cr.PC which authorises the police officer to arrest an accused without an order from a Magistrate and without a warrant

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are scrupulously enforced, the wrong committed by
the
police
officers
intentionally
or
unwittingly would be reversed and the number of cases
which
come
to
the
Court
for
grant
of
anticipatory bail will substantially reduce.

We

would like to emphasise that the practice of mechanically reproducing in the case diary all or most of the reasons contained in Section 41 Cr.PC for effecting arrest be discouraged and discontinued.

Our endeavour in this judgment is to ensure that

police
officers
do
not
arrest
accused

unnecessarily and Magistrate do not authorise detention casually and mechanically.

In order

to ensure what we have observed above, we give the following direction:

(1) All the State Governments to instruct its police officers not to automatically arrest when a case under Section 498-A of the IPC is
registered

but
to
satisfy
themselves
about the necessity for arrest under the
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18
parameters
laid
down
above
flowing
from
Section 41, Cr.PC;
(2) All
police
officers
be
provided
with
a

check list containing specified sub-clauses under Section 41(1)(b)(ii);

(3) The police officer shall forward the check list duly filed and furnish the reasons and materials while

which
necessitated
the
arrest,
the
accused
for
further
forwarding/producing

before

the

Magistrate

detention;

(4) The Magistrate while authorising detention of

the

accused

shall

peruse

the

report

furnished by the police officer in terms aforesaid

and

only

after

recording

its

satisfaction, the Magistrate will authorise detention;

(5) The decision not to arrest an accused, be forwarded

to

the

Magistrate

within

two

weeks from the date of the institution of

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the

case

with

a

copy

to

the

Magistrate

which may be extended by the Superintendent of police of the district for the reasons to be recorded in writing;

(6) Notice of appearance in terms of Section 41A

of

within

Cr.PC

be

two

weeks

institution

of

served

the

on

the

from

the

case,

which

accused date

of

may

be

extended by the Superintendent of Police of the District for the reasons to be recorded in writing;

(7) Failure

to

aforesaid police

comply

shall

officers

departmental

with
apart

the

from

concerned

action,

they

directions

rendering

the

liable

for

shall

also

be

liable to be punished for contempt of court to be instituted before High Court having territorial jurisdiction.

(8) Authorising

detention

without

recording

reasons

aforesaid

by

judicial

as

the

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Magistrate

concerned

shall

be

liable
for
departmental action by the appropriate High Court.

We
hasten
to
add
that
the
directions

aforesaid shall not only apply to the cases under Section 498-A of the I.P.C. or Section 4
of

the

Dowry

Prohibition

Act,

the

case

in

hand, but also such cases where offence is punishable with imprisonment for a term
which may be less than seven years or which may extend to seven years; whether with
or without fine.

We direct that a copy of this judgment be forwarded to the Chief Secretaries as also the
Director Generals of Police of all the State Governments and the Union Territories and
the Registrar General of all the High Courts for onward

transmission

and

ensuring

its

compliance.

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By order dated 31st of October, 2013, this Court

had

granted

provisional

bail

to

the

appellant on certain conditions. We make this order absolute.

In

the

result,

we

allow

this

appeal,

making our aforesaid order dated 31st October, 2013 absolute; with the directions aforesaid.

.....J (CHANDRAMAULI KR. PRASAD)

.....J (PINAKI CHANDRA GHOSE)

NEW DELHI, July 2, 2014.

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